

THE GOAL: Fuel for nuclear power plants like this one in Tarapur



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Operationalising the Deal

ACTION: India would have to amend its Atomic Energy Act to permit private corporations to run nuclear power plants and also legislate an indemnity clause.

DIFFICULTY: The Government needs a consensus for any amendment to the Act but if the divisions continue it may not be able to operationalise the deal.

DEADLINE Amendments by August 2008

and also when Parliament members debate the deal in the current session.

The Hyde Act waived the sections in the US Atomic Energy Act of 1954 that prohibited trade in nuclear items with countries like India that hadn't signed the Nuclear Non-proliferation Treaty and had detonated a nuclear device. Since it was going to make an extraordinary exception for India, the US Congress believed it should bring in stringent safeguards to prevent misuse and also put in provisions to get India to align its foreign policy closer to that of America's. While most of the sections offensive to India in the Hyde Act had been defanged before it was passed, certain portions still remained that could have torpedoed the deal.

Yet neither the Left nor BJP thought it an opportune moment to strike then. Instead, they allowed the Government to negotiate the 123 Agreement with the US which provides the legal framework on which nuclear trade is permitted. Experts reckon that the Agreement was favourable to India and wiped out any of the ill-effects of the Hyde Act. But after the Agreement was finalised in July the

Left and BJP insisted that the Hyde Act was still the guiding law and raised the war cry.

The Government believes this is all smoke and mirrors. On the argument of which statute takes precedence—the Hyde Act or the 123 Agreement—it expects to come out the winner. It is also confident that the way the 123 negotiations were conducted, all the commitments that the prime minister had made in Parliament about the scope of the deal had been fulfilled. This is one reason why Kapil Sibal, minister for science and technology, the Government's key defendant in Parliament, smiles broadly when he says, "We will satisfy all their concerns about this historic deal."

Much of the Government's confidence stems from the fact that there is weighty legal opinion in the US to back its assertion that the 123 Agreement—not the Hyde Act—will be the final binding agreement between the two countries. Sean Murphy, professor of Law, George Washington University Law School, explains, "An international agreement like the 123 if approved by the Congress does take precedence over any earlier statute. So to the extent if there were any changes that the 123 Agreement brings about those would supersede the earlier Act." Frederic L. Kirgis, Emeritus Professor of Law, Washington and Lee University School of Law and a constitutional diplomacy expert, concurs when he says, "Whatever the authorised representatives of the two countries have agreed upon would supersede any other previous agreement or any internal law of either country as a matter of international law."

Sensing that the ground had begun to slip, both the Left and BJP changed the goalposts. The Left got the Government to agree that the committee will also examine "the implications of the nuclear agreement on foreign policy and security co-operation". But if the joint committee is able to come up with constructive suggestions, it may actually help build the much needed national consensus for the deal. ■